

TENTATIVE RULINGS for LAW and MOTION

April 17, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two

(530) 406-6787

TENTATIVE RULING

Case: Evergreen Circle Investors, LP v. Gonzalez
Case No. CV2026-0920

Hearing Date: April 17, 2026 **Department Two** **1:30 p.m.**

Defendant Francisco Gonzalez’ request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (c), 453.) While the Court takes judicial notice of Exhibits B, C, and D, the Court finds that Exhibit A is irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant’s demurrer to plaintiff Evergreen Circle Investors, LP’s complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) While plaintiff attached the Violence Against Women Act (“VAWA”) notices to its notice to pay rent or quit (“three-day notice”), the VAWA notices expired prior to their service on defendant. (Complaint, ¶¶ 12-13 Exhibits 2 & 3 [indicating that the three-day notice was served on January 9, 2026, and the VAWA notices expired on June 30, 2017].) Therefore, plaintiff did not attach a “Notice of Occupancy Rights under the Violence Against Women Act,’ *as prescribed and in accordance with directions provided by HUD*” and a “certification form, *in a form approved by HUD*” to the notice served on defendant. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii), emphasis added; Complaint, ¶ 12, Exhibit 2.) As the notice did not include the required VAWA notices pursuant to statute, it “cannot support an action for unlawful detainer.” (*DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 9-10; 24 C.F.R. § 5.2005, subd. (a)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.